



United States
Attorney's Office
Middle District of Florida



Jury Convicts Florida Man For Stealing \$10.9 Million From Medicare

Tuesday, April 29, 2025

For Immediate Release

U.S. Attorney's Office, Middle District of Florida

Tampa, FL – United States Attorney Gregory W. Kehoe announces that a federal jury has found Lino Mallari Gutierrez (59, Palm City), a/k/a "Joe Gutierrez," guilty of conspiracy to commit health care and wire fraud, conspiracy to violate the federal anti-kickback statute, five substantive counts of health care fraud, and four substantive counts of payment of kickbacks in connection with a health care program. After the jury verdict, the court remanded Gutierrez into custody. Gutierrez faces a maximum penalty of 20 years in federal prison.

According to testimony and evidence presented at trial, Gutierrez and his co-conspirators owned and operated two durable medical equipment (DME) companies that collectively billed Medicare more than \$10.9 million for medically unnecessary DME, of which more than \$5 million was paid to Gutierrez and his co-conspirators. Gutierrez and his co-conspirators paid kickbacks to marketing companies in exchange for signed doctors' orders for unnecessary braces, which Gutierrez and the co-conspirators then used to bill Medicare. The marketing companies used call centers to solicit Medicare patients and telemedicine companies to procure prescriptions for unnecessary braces for these patients. Gutierrez concealed his role in the scheme by putting the DME companies in the names of straw owners.

As part of the conspiracy to commit health care and wire fraud, Gutierrez also filed false records with his employer and a private regulatory organization to conceal his involvement in the DME companies. Gutierrez was in the process of establishing four more DME companies with additional straw owners—including Gutierrez's mother and two of Gutierrez's friends—when the U.S. Department of Health and Human Services - Office of Inspector General and the Federal Bureau of Investigation identified the DME fraud through a national operation, which began in the Middle District of Florida, and through which dozens of co-conspirators were identified, charged, and convicted. Prior to law enforcement action, Gutierrez had already taken multiple steps to use these additional DME companies to bill Medicare for additional fraudulent claims. After learning of law enforcement action, Gutierrez moved Medicare proceeds from his account into other bank accounts under his control.

This case was investigated by the U.S. Department of Health and Human Services – Office of Inspector General and the Federal Bureau of Investigation. It is being prosecuted by Assistant United States Attorney Jennifer Peresie and Trial Attorney Margaret Mortimer of the Department of Justice Criminal Division’s Fraud Section.

Updated April 30, 2025

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